

Petitioner v. U.P. Electricity Regulatory Commission

High Court of Judicature at Allahabad · Division Bench · 4 December 2025 · Writ-C No. 42735 of 2025 · **Disposed of; respondent No. 3 to decide the load-enhancement application within four weeks; excess demand penalty to abide that decision.**

HEADNOTE

Petitioner sought mandamus under Clause 6.9 of the U.P. Electricity Supply Code, 2005 to enhance sanctioned load from 80 HP to 140 HP from February 2023 and to waive excess demand penalty. Off-season discount was not pressed. Without opinion on merits, the Division Bench directed respondent No. 3 to decide the pending enhancement application within four weeks; the penalty would abide that decision.

FACTUAL SUMMARY

The petitioner, sanctioned at 80 HP, applied to enhance load to 140 HP under Clause 6.9 of the U.P. Electricity Supply Code, 2005. The application was not considered and he was billed excess demand penalty. By writ he sought mandamus to respondent No. 3 to enhance the load from February 2023 and waive the penalty. A second relief for off-season discount was not pressed. Counsel for the Electricity Department stated that the enhancement application would be considered and decided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.9

load enhancement

HOLDING

Without expressing any opinion on merits, the writ was disposed of with a direction to respondent No. 3 to decide the petitioner's pending application for enhancement of load from 80 HP to 140 HP under Clause 6.9 within four weeks of communication of the order; levy of excess demand penalty would abide that decision.

¶ 4

PRINCIPLE TAGS

relegate-to-statutory-remedy Petitioner sought mandamus under Clause 6.9 of the U.P. Electricity Supply Code, 2005 to enhance sanctioned load from 80 HP to 140 HP from February 2023 and to waive excess demand penalty. Off-season discount was not pressed. Without opinion on merits, the Division Bench directed respondent No.. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER LOAD IS TO BE ENHANCED FROM 80 HP TO 140 HP UNDER CLAUSE 6.9 AND WHETHER EXCESS DEMAND PENALTY IS TO BE WAIVED

No opinion on merits; respondent No. 3 to decide the application; penalty to abide that decision. ¶ 4